CITY OF LOS ANGELES CHARTER AMENDMENT PRT

TITLE:
CITY AIRPORTS, HARBOR, AND WATER AND POWER DEPARTMENTS.

THE ISSUE:
Should the City Charter be amended to: require the Harbor Department to allocate funds for waterfront public access projects; require disclosure of workforce impacts for certain leases and agreements at the Port of Los Angeles; increase maximum terms for certain leases; and change the composition requirement for the Airport Commission?

THE SITUATION:
The Charter allows City Council to approve leases of up to 50 years for the Airports Department (LAWA) and Department of Water and Power (DWP) and up to 66 years for the Harbor Department.

The Charter establishes a seven-member Board of Airport Commissioners with one member from the area surrounding Los Angeles International Airport (LAX) and one member from the area surrounding Van Nuys Airport (VNY).

The Charter gives the Board of Harbor Commissioners authority to manage the Harbor District. State law requires Coastal Development Permits for many harbor development projects.

THE PROPOSAL:
This measure would:

- Allow City Council to authorize leases up to 66 years for LAWA and DWP;
- Require three members of the Board of Airport Commissioners to be from the area surrounding LAX and two from the area surrounding VNY;
- Require the Harbor Department to use some of its operating income for waterfront public access projects; and
- Require applicants for certain proposed leases, and for developments that require Coastal Development Permits, at the Port of Los Angeles to disclose the impacts on employment levels associated with the proposed project.

A YES VOTE MEANS:
You want the Charter to be amended to make the changes described above regarding the City's Airports, Harbor, and Water and Power departments.

A NO VOTE MEANS:
You do not want the Charter to be amended to make the changes described above regarding the City's Airports, Harbor, and Water and Power departments.

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PRT CITY AIRPORTS, HARBOR, AND WATER AND POWER DEPARTMENTS. CHARTER AMENDMENT PRT.

Shall the City Charter be amended to: require the Harbor Department to allocate funds for waterfront public access projects; require disclosure of workforce impacts for certain Harbor Department leases and agreements; increase maximum terms for certain leases; and change the composition requirement for the Airport Commission?

IMPARTIAL SUMMARY
BY SHARON M. TSO, CHIEF LEGISLATIVE ANALYST

City Charter Section 607 places limitations on franchises, concessions, permits, licenses and leases for each Proprietary Department (Airports Department, Harbor Department, and the Department of Water and Power). Section 607(a) provides that the City Council may authorize a lease term of up to 50 years for the Airports Department and Department of Water and Power, and 66 years for the Harbor Department.

City Charter Section 630 provides that the Board of Airport Commissioners shall consist of seven members, and that one member shall reside in the area surrounding Los Angeles International Airport and one member shall reside in the area surrounding Van Nuys Airport. These areas are defined by ordinance.

City Charter Section 651 provides that the Board of Harbor Commissioners shall have possession, management, and control of Harbor Department assets. It further specifies that the lands and waters under possession, management, and control of the Board of Harbor Commissioners shall be known as the Harbor District. City Charter Section 651 also reserves water frontage for public use, and prohibits the sale of the tidelands and submerged lands of the Harbor District. City Charter Section 652 states the powers and duties of the Board of Harbor Commissioners, including the power and duty to establish rules and regulations related to the Harbor District.

State law requires a Coastal Development Permit for many developments within the Harbor District. This includes construction projects and projects that meaningfully increase or change the level or type of activity on a site or in the water, or that change public access to it, even if nothing is built.

This measure would amend the City Charter to:

- Allow the City Council to authorize Airports Department and Department of Water and Power leases for a term up to 66 years, or the maximum length allowed by any federal or state law, whichever is less, if the City Council makes a finding that a term longer than 30 years would be in the best interest of the City. The City Charter already allows the City Council to authorize Harbor Department leases for a term up to 66 years.

- Increase local residency requirements for the Board of Airport Commissioners by requiring that three of the seven members of the Board of Airport Commissioners reside in the area surrounding the Los Angeles International Airport and that two of the seven members reside in the area surrounding Van Nuys Airport. The measure would also allow the City Council to, by ordinance, further divide these areas into subareas and establish commissioner residency requirements.
- Require the Board of Harbor Commissioners to annually allocate a portion of the operating income of the Harbor Department for waterfront public access projects and other public serving projects and programs developed with public input as part of a Public Access Investment Plan. The Board of Harbor Commissioners would have the sole authority to determine the amount to allocate each year.
- Require all applicants seeking approval of a lease, lease extension, or lease amendment, or any proposed development of property within the Harbor District that requires a Coastal Development Permit, to submit a workforce impact disclosure that provides an assessment of estimated workforce effects associated with the proposed action, including employment and economic impacts. The Board of Harbor Commissioners may exempt small businesses and nonprofit organizations from providing an economic impact analysis.

This measure will become effective if approved by a majority of voters.

FINANCIAL IMPACT STATEMENT
BY MATTHEW W. SZABO, CITY ADMINISTRATIVE OFFICER

This measure amends the City Charter as follows:

Lease Length - Extends maximum lease terms for Los Angeles World Airports and Department of Water and Power from 50 to 66 years, aligning them with the Harbor Department. This amendment is cost-neutral.

Airport Board Composition – Increases the local residency representation from one to three members and one to two members for the areas surrounding LAX and Van Nuys Airport, respectively. This amendment is cost-neutral.

Harbor Public Access Investment Plan (PAIP) - Codifies the Harbor Department's annual practice of allocating 10 percent of its operating income to the PAIP for waterfront projects and programs. The historical annual allocation to the PAIP is approximately $28.6 million.

Workforce Impacts - Mandates all applicants seeking Harbor District lease approvals, extensions, amendments, or Coastal Development Permits to submit a self-funded workforce impact disclosure assessing regional economic and employment effects. This amendment is cost-neutral.

ARGUMENT IN FAVOR OF CHARTER AMENDMENT PRT

VOTE YES ON MEASURE PRT to strengthen community representation, protect local investments, and ensure greater accountability from Los Angeles' proprietary departments.

From East Los Angeles to the Westside, from the Port to the Valley, representation matters deeply to the communities we serve–and especially to those who live and work alongside our airports and waterfront.

Measure PRT ensures that the neighborhoods most affected by airport operations have a stronger voice in local decisions. By increasing the number of geographically representative Airport Commissioners from two to five, the measure gives residents impacted by aircraft noise, traffic, and congestion the direct representation they deserve on the Airport Commission.

At the Port of Los Angeles, Measure PRT memorializes important existing commitments in the City Charter. It codifies requirements to consider and disclose how leases and agreements may impact local jobs and our workforce, ensuring those consequences remain part of the public decision-making process. It also protects the Port's commitment to investing in waterfront public access by codifying existing investment plans in the Charter. These investments help ensure that communities hosting one of the nation's busiest ports continue to share in the benefits of our working waterfront.

Measure PRT also modernizes leasing authority for the Department of Water and Power and the Los Angeles World Airports, providing greater flexibility for responsible long-term investments and critical infrastructure while maintaining public oversight.

Communities that host our airports and port operations contribute enormously to Los Angeles. They deserve representation, transparency, and a lasting commitment to local investment.

VOTE YES ON MEASURE PRT–from East Los Angeles to the Westside, from the Port to the Valley, representation and community accountability matter.

PERSONS SIGNING ARGUMENT IN FAVOR OF CHARTER AMENDMENT PRT

TIM MCOSKER
Councilmember, District 15
City of LA

TRACI PARK
Councilwoman, District 11
City of LA

PAULA GEREZ
President
Westchester/Playa Neighborhood Council

IMELDA PADILLA
Councilwoman, District 6
City of LA

GINA MARTINEZ
Wilmington Community Advocate

DAVID YANOWITZ
Van Nuys Community Advocate

NO ARGUMENT AGAINST THIS MEASURE WAS SUBMITTED.

Arguments printed are the opinions of the authors and are not checked for accuracy by any City agency. In addition, the title beneath a signer's name is for identification purposes only and does not indicate that the individual is signing on behalf of the organization.

New provisions or language added to the Charter or to existing Charter sections are shown in underline type; words deleted from the Charter or from existing Charter sections are shown in ~~strikeout~~ type.

CHARTER AMENDMENT PRT
(CITY AIRPORTS, HARBOR, AND WATER AND POWER DEPARTMENTS)

TEXT OF THE PROPOSED BALLOT MEASURE

Section 1. Subsection (a) of Section 607 of the Charter of the City of Los Angeles, regarding limitations on Proprietary Department franchises, concessions, permits, licenses and leases, is amended to read as follows:

(a) **Length.** The term shall not exceed 30 years or the term specified by applicable federal or state law, whichever is less. If Council makes a finding that a term longer than 30 years would be in the best interest of the City, Council may, by a two-thirds vote, subject to Mayoral veto, or three-fourths vote over the veto of the Mayor, authorize ~~a term up to 50 years for the Airports Department and Department of Water and Power and~~ a term up to 66 years for the Department of Airports, Harbor Department, and the Department of Water and Power, or the maximum period allowed by any federal or state law, whichever is less.

Sec. 2. Section 630 of the Charter of the City of Los Angeles, regarding the Board of Airport Commissioners, is amended to read as follows:

The Board of Airport Commissioners shall consist of seven members appointed and removed as provided in Section 502. At least three members ~~one member~~ shall reside within the area surrounding Los Angeles International Airport and at least two members ~~one member~~ shall reside within the area surrounding Van Nuys Airport, as those areas are defined by ordinance. The Council may, by ordinance, further divide the areas surrounding Los Angeles International Airport and Van Nuys Airport into subareas, establishing commissioner residency requirements among those subareas.

Sec. 3. A new Subsection (d) is added to Section 651 of the Charter of the City of Los Angeles, regarding the possession, management, and control of Harbor Department assets, to read as follows:

(d) **Public Access Investment Plan.** The Board of Harbor Commissioners shall annually allocate a portion of the operating income of the Harbor Department to invest in waterfront public access projects and other public serving projects and programs developed with public input as part of a Public Access Investment Plan. The Board of Harbor Commissioners shall have the sole authority to determine the appropriate amount to allocate to the Public Access Investment Plan each fiscal year consistent with its fiduciary duties under California Public Resources Code sections 6005, 6009.1, and 6306 and other applicable law.

Sec. 4. A new Subsection (g) is added to Section 652 of the Charter of the City of Los Angeles, regarding the Board of Harbor Commissioners, to read as follows:

Sec. 652. Powers and Duties of the Board.

The board shall have the power and duty to:

(a) **Rules and Regulations**. Make and enforce all necessary rules and regulations

governing the maintenance, operation and use of the Harbor District, and enforce penalties for the violation of those rules and regulations.

(b) **Harbor Traffic**. Regulate and control the piloting, anchoring, mooring, towing and docking of all vessels and watercraft in the Harbor District.

(c) **Control Over Harbor Facilities**. Regulate and control the construction, maintenance, operation and use of any railroad, wharf, warehouse or other facility, utility, structure or improvement used in connection with the Harbor District.

(d) **Dredging**. Regulate and control all dredging, filling and excavating in the Harbor District.

(e) **Rates**. Fix and collect rates and charges for the use of the Harbor Assets, pilotage and towage, and any other service provided by the department.

(f) **Development of the Harbor District**. Acquire, provide for, construct, maintain and operate all improvements, utilities, structures, watercraft, facilities and services for Departmental Purposes and to acquire and take, by purchase, lease, condemnation or otherwise, in the name of the City, any property, real or personal, or any interest therein, and to designate the site for any public buildings, structures or facilities in the Harbor District. The power of condemnation shall only be exercised with the approval of Council.

(g) **Workforce Impacts**. Require all applicants seeking approval of a lease, lease extension, or lease amendment, or any proposed development of property within the Harbor District that requires a Coastal Development Permit, submit a workforce impact disclosure that provides an assessment of estimated workforce effects including, but not limited to, the potential impact on employment associated with the premises and the estimated economic impact on the greater Los Angeles region to the extent known. Small businesses and nonprofit organizations, as defined by the Board of Harbor Commissioners, may be exempt from providing an economic impact analysis. The Board of Harbor Commissioners shall consider disclosures submitted by an applicant under this subsection consistent with the Board's fiduciary duties under California Public Resources Code sections 6005, 6009.1, and 6306 and other applicable law.

Sec. 5. Severability. If any section, subsection, clause, sentence, phrase, or application of this Charter amendment or any portion thereof is held unconstitutional or invalid by any court or tribunal of competent jurisdiction, the remaining sections, subsections, clauses, sentences, phrases, portions, or applications of this Charter amendment shall remain in full force and effect, and to this end the provisions of this Charter amendment are severable. In addition, the voters declare that they would have passed all sections, subsections, clauses, sentences, phrases, portions, and applications of this Charter amendment without the section, subsection, clause, sentence, phrase, portion, or application held unconstitutional or invalid.